

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS MARCH TERM, A.D. 2026

BEFORE HIS HONOR : YAMIE QUIQUI GBEISAY, SR CHIEF JUSTICE
BEFORE HER HONOR : JAMESETTA H. WOLOKOLIEASSOCIATE JUSTICE
BEFORE HIS HONOR : YUSSIF D. KABA.....ASSOCIATE JUSTICE
BEFORE HER HONOR : CEANEH D. CLINTON JOHNSON.....ASSOCIATE JUSTICE
BEFORE HIS HONOR : BOAKAI N. KANNEH.....ASSOCIATE JUSTICE

Eva Williams, Vivian Williams, Abel, Dugborma, William)
Gloria Brown, Lawrence, Arthur Sherman, Elizabeth &)
Junior Williams, all of Sinkor, Montserrado, Republic of)
Liberia.....Appellants)

Versus)

APPEAL)

The Intestate Estate of Malvina McGill by and thru its)
Administrators, Charles Russell, Cllr. Sara M. Toe and)
Estella McGill of the City of Monrovia, Mont. County)
Republic of Liberia.....Appellee)

GROWING OUT OF THE CASE:)

The Intestate Estate of Malvina McGill by and thru its)
Administrators, Charles Russell, Cllr. Sara M. Toe and)
Estella McGill of the City of Monrovia, Mont. County)
Republic of Liberia.....Plaintiff)

Versus)

ACTION OF
EJECTMENT)

Eva Williams, Vivian Williams, Abel, Dugborma, William)
Gloria Brown, Lawrence, Arthur Sherman, Elizabeth &)
Junior Williams, all of Sinkor, Montserrado, Republic of)
Liberia.....Defendants)

Heard: March 30, 2026

Delivered: August 27, 2026

MADAM JUSTICE WOLOKOLIE DELIVERED THE OPINION FOR THE COURT

This appeal arises from the final judgment of the Sixth Judicial Circuit, Civil Law Court "B," Montserrado County, rendered on the 27th day of May, A.D. 2022, by His Honor Scheaplor R. Dunbar, Assigned Circuit Judge. In that judgment, the trial court adjudged the appellants

liable in an action of ejectment and ordered them ousted and evicted from 0.37 acres of land situated and lying in Saye Town, Monrovia, Montserrado County, the subject of this proceeding.

On July 28, 2017, the appellee, the intestate estate of Malvina McGill, acting by and through its duly appointed administrators, Charles Russell, Counsellor Sarah M. Toe, and Estella McGill, instituted a six-count action of ejectment before the Sixth Judicial Circuit, Civil Law Court "B," Montserrado County, against the appellants, Eva Williams, Vivian Williams, Abel Dugborma Williams, Gloria Brown, Lawrence Arthur Sherman, Elizabeth Pagar, and Junior Williams.

The appellee alleged that the subject 0.37 acres was purchased by the late Malvina McGill, in April of 1955, from the intestate estate of Christianah C. Burke, through its executrix, Etta C. Brent Kpaba, pursuant to a duly executed, registered, and probated deed. The appellee averred that the appellants, without lawful claim, color of right, or the consent of the intestate estate, unlawfully occupied the said property and conducted commercial activities thereon to the detriment of the appellee and its heirs. The appellee further alleged that formal written notices to vacate were duly served upon the appellants on March 27, 2017, and again on April 4, 2017, but the appellants disregarded such notices and continued their wrongful occupation of the property. The appellee accordingly prayed the trial court to: (i) enter judgment against the appellants, ordering their ejection and eviction from the property; (ii) award general damages in the amount of Twenty Thousand United States Dollars (US\$20,000.00) for the wrongful withholding; and (iii) grant such other and further relief as the court deemed just, legal, and equitable.

On August 4, 2017, the appellants filed their answer, denying the material allegations of the complaint and interposing an affirmative defense grounded in adverse possession. The appellants alleged that the subject property was acquired by their late father, Mr. Joseph C. Williams, through a squatter's right issued by the Monrovia City Corporation in the 1950s pursuant to authority vested in that body by the Government of Liberia. The appellants, however, failed to annex any documentary evidence of such squatter's right to their pleadings, averring that the said document was destroyed or misplaced during the Liberian Civil War.

In the alternative, the appellants invoked the doctrine of adverse possession and asserted that, by virtue of their father's opened, notorious, hostile, exclusive, and uninterrupted occupation of the property since the 1950s, title had passed to them by operation of law; that the appellee's cause of action was time-barred under section 2.12(2) of the Civil Procedure Law, considering that at the time the appellants occupied the property in 1956, the statutory

period of adverse possession was set at not less than twenty years, and in as much as they and their predecessors had been in uninterrupted possession for a period far exceeding twenty years, adverse possession. The appellants relied upon the principle in the case *Jackson v. Mason*, 24 LLR 108 (1975), and argued that the appellee, having remained silent from the 1950s through 2017, it was estopped from pursuing this litigation.

The appellee filed an amended reply maintaining that proof of ownership of real property under Liberian law is established by a duly registered and probated title deed, and not by an alleged squatter's right that was never produced before court. The appellee further argued that it was legally inconsistent for the appellants to simultaneously claim title through a squatter's right purportedly derived from the Government through the Monrovia City Corporation while also asserting title in themselves through adverse possession.

With respect to the statute of limitations defense, the appellee argued that the appellants had failed to annex any instrument capable of identifying the precise date on which their alleged rights accrued, thereby, making it impracticable to compute the prescriptive adverse period.

On January 24, 2018, the appellee moved for summary judgment, asserting that the appellants' admissions regarding the absence of documentary title negated any genuine issue of material fact warranting trial. In resistance to the motion, the appellants argued that adverse possession presents factual questions to include the duration and character of occupation which are ordinarily within the province of the jury. The trial court denied the motion for summary judgment and ordered the matter proceeded with on its merit.

Both parties waived their right to trial by jury and submitted the matter to the Assigned Circuit Judge for a bench trial. Three witnesses testified on behalf of the appellee, and two witnesses on behalf of the appellants.

Madam Esther Morgan, the appellee's first witness, testified that she was the sister-in-law of the decedent of the appellee estate, the late Malvina McGill; that the said Malvina McGill had permitted her (witness) and her late husband to reside on the subject property; that it was her late husband who placed Mr. Joseph C. Williams and his family along with other residents on the property to serve as caretakers, that following the Civil War, Malvina McGill's son requested that all occupants, including the family of Mr. Joseph C. Williams, vacate the property in order to permit construction. The witness further testified that she and the other occupants vacated the property as directed, but the appellants refused to comply.

Richards who conducted due diligence to the effect that Counselor Richards demanded from the petitioner his mother's deed, the letter of administration and a court's decree for sale.

7. That your honor hugely committed error of judgment when you relied just upon a statement made by the petitioner to the effect that he only stated that "THIS IS NOT MY SIGNATURE" without further establishing those yardsticks attending to proving fraud. In the case *Intrusco v Osseily* (1985) at syllable 4, fraud is defined as an intentional perversion of the truth designed for the purpose of inducing another to act in reliance upon it or to part with some valuable thing belong to him or to surrender a legal right. At syllable 6, the Court stated that being an affirmative plea, "fraud" when relied upon to establish a case, must be specifically pleaded and positively not presumptively proved at the trial. In this case, your honor only relied upon a testimony made by the petitioner stating that "this is not my signature"; this statement in itself does not prove fraud.

Upon the perfection of the appeal, the case was docketed before this Court sitting in its October Term, A.D. 2025. Having carefully reviewed the certified records, the briefs filed by the parties, and heard the arguments of the parties before us, this Court is of the considered opinion that the determination of this appeal rests upon a single issue: Whether the trial Judge should have proceeded to hear the case without a jury where the appellee accused the appellants of fraudulently changing a deed issued by the appellee for two lots to that of one acre, and claiming that the appellants forged the signature of the appellee's administrator and his witness on the deed.

The trial court had a bench hearing and ruled as follows below:

This Court says that petitioner's evidence clearly established that the one acre deed that the respondents have in their possession is fraudulent, as the deed was never executed by the petitioner.

Petitioner having produced evidence that established a valid legal ground for the judicial cancellation of the deed for one (1) acre of land purportedly issued by petitioner, the burden shifted to respondents to rebut the petitioner's evidence and sustain the one-acre deed. The respondents' evidence failed to fully rebut petitioner's evidence. During trial, except for co-respondent Mohammed Fofana's uncorroborated testimony, no attempt was made by respondents to produce witnesses who allegedly witnessed the one-acre deed, no cash payment receipts were produced, and the surveyor who is alleged to have surveyed the one-acre of land and prepared the title deed was never produced. Mateneh Fofana, who testified during the trial, admitted that she was not present when the property was surveyed and the deed issued to co-respondent Mohammed Fofana.

of the appellee's witnesses credible, particularly the corroborating accounts that Mr. Joseph Williams was placed on the property in the capacity of a caretaker by the McGill family.

Relying upon the authority of *Morris et al. v. Keita*, 39 LLR 710 (1999), the trial judge held that a defendant in an ejectment action cannot simultaneously claim title in a third party and title in himself through adverse possession. The judge further held that the Monrovia City Corporation was without legal authority to issue squatter's rights over privately owned real property since the subject land was not government property when the appellants' father allegedly obtained squatter's rights in 1956. The trial court accordingly adjudged the appellants liable in ejectment and ordered them ousted and evicted from the property.

Following the entry of final ruling, the appellants filed an eight-count bill of exceptions to the judge's final ruling. Of the eight counts presented, this Court finds counts 3, 4, and 5 particularly relevant to the issue of right of possession, and addresses them herein. For ease of reference, we reproduce these counts verbatim:

3. Appellants also say that Your Honor committed another reversible error when your Honor ruled that in an ejectment action, the defendants cannot claim title to the premises in a third party and at the same time claim title in himself to the same property by adverse possession; and that a party claiming adverse possession of real property cannot also plead that title to the disputed property is vested in a third party. Appellants submit that Chapter 9, section 9.6 of the Civil Procedure Law of Liberia "Alternative Pleadings" provides that, A party may set forth two or more statements of a claim or defense in the alternative. When two or more statements are made in the alternative and one of them if made independently would be sufficient, the pleading is not made insufficient by the insufficiency of one or more of the alternative statements. All statements shall be made subject to the obligations set forth in section 9.4. Therefore, Your Honor ruling shall be ignored and reversed.
4. Appellants submit that Your Honor committed a reversible error when you ruled that it is settled law that when the plaintiff in an ejectment action has shown a valid and legal title to property, he or she is rightfully entitled to recover the said property in dispute upon the strength of that title. Appellants submit that this legal assertion is wrong because adverse possession is an affirmative defense which does not concern itself with the authenticity of the plaintiffs' title deed, rather the plaintiffs is barred from bringing the law suit against the defendants after the defendants have lived on the property openly, notoriously, and in a hostile manner without a demand to move from the property for more than twenty (20) years, now fifteen (15) years. Therefore, Your Honor ruling is erroneous and reversible.

5. Appellants submit further that the law requires that all actions be commenced within the time prescribed by law. An action to recover real property or its possession shall be barred if the defendants or his privy has held the property for a period of not less than twenty years. Section 2.12(2), 1LCLR, Civil Procedure Law of Liberia. In the instant case, the Defendants lived on the subject property for than forty (40) years. Therefore, the Ruling of Your Honor shall be reversed.

The appellants exceptions to the ruling by the trial judge hinges on what the appellants term as an erroneous interpretation of the Civil Procedure Law, Rev. Code 1:9.6 *Alternative Pleadings*, and the reliance of the judge on the case, *Morris et al. v. Keita*, 39 LLR 710 (1999). The judge had held that a defendant in an ejectment action cannot simultaneously claim title in a third party and title in himself through adverse possession, but to the contrary, the appellants say, section 9.6 of the Civil Procedure Law states: "A party may set forth two or more statements of a claim or defense in the alternative. When two or more statements are made in the alternative and one of them if made independently would be sufficient, the pleading is not made insufficient by the insufficiency of one or more of the alternative statements. All statements shall be made subject to the obligations set forth in section 9.4."

The Court, referencing the *Morris et al. v. Keita* case based upon which the trial court ruled, says that the facts in that case are that the appellee, Keita, instituted an action of ejectment against the appellants, Morris et al., claiming title to a certain parcel of land on Bushrod Island, Monrovia, based on a title deed proffered with his complaint. In their answer, the appellants submitted that the parcel of land belonged to the Cooper family, who had permitted Abraham Morris, the principal appellant, to occupy same; and that the appellants, having lived and occupied the property openly and without any molestation for a period of more than twenty (20) years as of the filing of the complaint, the property had reverted to them by virtue of adverse possession.

The appellee Keita, after such answer to his complaint, moved the trial court for a summary judgment stating that the appellants did not proffer a deed or lease agreement to their answer, and accordingly, there was no title in issue on grounds that the appellants cannot claim title in the Cooper family and at the same claim title by adverse possession. The summary proceeding was heard and granted by the trial court which held that the appellants did not affirmatively plead adverse possession.

The appellants appeal the trial court's ruling to the Supreme Court which ruled confirming the trial court's ruling. We reproduced verbatim the relevant excerpt of the Supreme Court's ruling:

"This Court holds that the appellants cannot claim title to the premises in a third party and at the same time claim title to the same property by adverse possession. The rationale is that a claim of legal title in a third party and a claim of possessory right or title by a defendant in an action of ejectment are two separate and distinct defenses or claims. A claim of title in a third party does not vest title in a second party, whose possession of the premises is at the instance of the third party. In other words, the claim to title of premises in the Cooper family does not vest any title in the appellants in the absence of any documentary evidence. The Cooper family, under our law, procedure and practice in this jurisdiction, is the proper party defendant to protect the rights and interests of its property. The Cooper family therefore has adequate remedy at law against appellee Keita if said Cooper family so desires."

The appellee in the instant case has argued before this Court, relying on *Morris et al. v. Keita*, 39 LLR 710 (1999), that one cannot claim title in a third party and simultaneously claim title in himself or herself. In response, the appellants have invoked the Procedure Law, Rev. Code 1:9.6 in their bill of exceptions and counterargued that the statute supports alternative pleading and, as such, the holding of the Supreme Court in *Morris et al. v. Keita*, 39 LLR 710 (1999), was misapplied by the trial court when it held that it was legally untenable for the appellants to assert title in a third party and, at the same time, assert title in themselves by way of adverse possession.

We disagree with the argument of the appellants. It is obvious that the appellants misunderstood the line of distinction between the principle this Court espoused in *Morris* and the expressed language of Section 9.6 of the referenced statute with respect to alternative pleading. The framers of the statute crafted the language of Section 9.6 with great care, and it states:

A party may set forth two or more statements of a claim or defense in the alternative. When two or more statements are made in the alternative and one of them if made independently would be sufficient, the pleading is not made insufficient by the insufficiency of one or more of the alternative statements.

From the statute cited above, we must emphasize that although alternative pleadings are mandated by the statute and encouraged by this Court, such pleadings, when challenged, can only suffice where the independent assertion of one statement in the pleading is not

contradicted or rendered insufficient by the other alternative statement or statements. In the instant case, the appellants do assert that they acquired the disputed land through a squatter's right from the Monrovia City Corporation, while also claiming title in themselves through adverse possession by operation of law. Taking cue from our reading of section 9.6 of the Civil Procedure Law, the question we ask is, can one part of the appellants' assertion stand independently without being rendered insufficient by the alternative assertion? That is, can the appellants assert a claim to the property against the appellee even though they contend that it belongs to the Government of Liberia, from whom they acquired squatter's, right? This is precisely the question that this Court answered in *Morris et al. v. Keita*, 39 LLR 710 (1999), which we must also reiterate in the instant case.

The doctrine of adverse possession presupposes that the adverse possessor entered the property without the permission or license of any superior title holder and maintained possession under a claim of right that is hostile, open, notorious, exclusive, and continuous for the prescriptive period. It cannot, by its very nature, coexist with a claim that the occupant entered lawfully under rights issued by a third party, because such an entry is permissive and denies the appellants the capacity to assert an adverse possession claim independently in themselves.

This Court says that the facts in *Morris et al. v. Keita* are analogous to the facts of the instant case. The appellants herein are arguing that their respective titles are vested in a third party, the government through the Monrovia City Corporation, yet they sought to assert title in themselves through adverse possession. As this Court observed in the *Morris* case, and reiterates herein in this case at bar, alternative pleading of such nature cannot survive the test as prescribed in Section 9.6 of the statute, where it is a requirement for one statement in the alternative pleading to independently stand out without being rendered insufficient by the other statement(s). As with the instant case, the appellants, having indicated that they do not own the property, but are simply squatters thereon at the behest of a third party, the government of Liberia, we do not again see how a plea of adverse possession can suffice.

The government, whom the appellants admit is the owner of the disputed property, is the proper party defendant to protect the rights and interests of its property. Besides, if the trial court had awarded the property to the appellants, it would be erroneous since a party who admits being placed on a piece of property by another, owner of the property, cannot claim ownership to that property by adverse possession since right to the property remains in the owner. The appellants' assertion that title to the property is vested in the Government of

Liberia, and that they acquired the said property through squatters' rights, reveals a manifest lack of capacity on the part of the appellants to pursue this matter in the absence of any authorization from the purported grantor which did not occur in this case. Thus, the appellants' alleged squatters' right, when weighed against the appellee's claim, supported by a genuine title deed, crumbles as a matter of law, and it would be erroneous for the court to grant adverse possess to the appellants based on their own admission. A squatter or occupant of public land does not acquire ownership merely because a governmental or municipal authority permit occupation. No municipal body, including the Monrovia City Corporation, can legally create ownership rights in squatters merely through permits, occupancy acknowledgement, or municipal certificate.

This Court recalls a practice hoary with age in this jurisdiction where a third-party property rights have been challenged by the filing of a case against the third party's caretakers, tenants, or squatters, the third party intervenes in defense of his/her rights in said property. In the instant case, we see a point of departure, where the Monrovia City Corporation, the supposed owner of the subject property as alleged by the appellants, stood by and did nothing to intervene in the matter, and laying claim to the disputed property as public property, and had authorized the appellants to dwell thereon. These inactions on the part of the appellants raise genuine questions about the validity of their claim that title was vested in the Monrovia City Hall and that they were bearers of squatter's right especially when they presented no evidence of been given squatters' rights to preside on the said property.

The Court also further notes the overwhelming evidence by the appellee's witnesses, that Joseph C. Williams was put on the property as a caretaker, and that the appellants, heirs to Joseph C. Williams, are laying claim to the property through Joseph C. Williams; that this statement was corroborated by the testimony of the appellee's third witness, Madam Gracetee Kpan, who testified that she along with her family were also accordingly invited to live on the property by Marie Morgan, and that upon their visit to the land, they were introduced to Joseph C. Williams, who was then residing on the land as a caretaker.

The Judge acting as jury gave probative value to the appellee witnesses' testimonies confirming that Mr. Joseph C. Williams was brought to live on the subject property at the instance of the appellee's family, and it is an exception to the adverse possession principle that one who was placed on a piece of property by its owner, cannot subsequently plead adverse possession against that land owner. This Court, in line with this principle of law, has similarly held in several Opinions that no matter the number of years an occupant has resided on the property by permission of the owner, it is legally untenable for said occupant to

challenge the title of the owner to the property where he/she had lived with the permission of the owner; *Ngekia v. Momoh*, Supreme Court Opinion, March Term, A.D. 2023. Adverse possession therefore could not be claimed by the appellants against the appellee in this case. Further, the appellee having asserted ownership of the disputed property through a squatter's acquired from the Monrovia City Corporation, it was legally inconsistent to claim the same property through an affirmative defense in adverse possession.

The Law however requires that a plaintiff in an ejectment action must established beyond the preponderance of evidence, a valid and legal title to a property under litigation, he or she is rightfully entitled to recover the said property upon the strength of that title. *Tulay vs. Salvation Army (Liberia) Inc.*, 41 LLR 262 (2002). Now comes the issue whether during the trial the appellee asserted claim to the disputed property by the preponderance of evidence? We answer this question in the affirmative.

As the records revealed, the evidence of the appellee's title to the disputed property, including its certified National Archive copy of its deed, were sufficient proof that the late Malvina McGill purchased the subject 0.37 acres by deed from the Intestate Estate of the late Christianah C. Burke through Executrix Etta C. Brent Kpaba in April of 1955 and his purchase predates the claim asserted by the appellants that their father obtained squatter's rights in 1956.

Moreover, even taking the appellants' narrative at face value that their father went to City Hall and obtained a squatter's rights, which was subsequently destroyed during the Civil War, the appellants conceded that they never returned to the City Corporation to obtain a replacement document. The record available before this Court therefore consists of nothing to withstand the appellee's title instrument. Besides, the appellants produced no witness with personal knowledge that a valid squatter's rights was ever issued to Mr. Joseph C. Williams by the Monrovia City Hall. Madam Dugborma Williams, the Widow of Joseph C. Williams, who served as the appellant's first witness, testified that her husband brought her on the property in 1956 and they have resided and raised all their children. She further testified that her husband informed her that the land was government property and that he had obtained squatter's right from the City Hall. Vivian Williams, the appellant's second witness, also testified that her father told her that he had acquired the property through squatter's right. These were the only two witnesses that testified for the appellants and in so far as we have seen, neither of them provided firsthand knowledge of the City Hall issuing a squatter's right to Joseph C. Williams. These testimonies were based on hearsay, and because a testimony by Monrovia City would have provided the best clarity as to whether it issued a squatter's right or not, they do not constitute the best evidence (*The Management of the John F. Kennedy*

Medical Center v. Karen Gaydou Sehkehporh, Supreme Court Opinion, October Term, 2024). Besides, this Court has held that though a City Corporation may grant squatters right, such right does not vest ownership in the squatters by virtue of their occupancy of the property. *Jalingo et. al v. Paye*, Supreme Court Opinion, March Term, A.D. 2008. This Court therefore cannot, on the foundation of hearsay, reverse a trial court judgment supported by strong evidence of a registered deed and supporting oral testimonies presented by the appellee.

WHEREFORE AND IN VIEW OF THE FOREGOING, the ruling of the trial court is affirmed and the appellants ordered evicted. The Clerk of this Court is ordered to send a Mandate to the Court below commanding the judge presiding therein to resume jurisdiction and enforce the judgment emanating from this Opinion. Costs of this proceeding are adjudged against the appellants. AND IT IS HEREBY SO ORDERED.

WHEN THIS CASE WAS CALLED FOR HEARING, COUNSELLOR EMMANUEL T. REEVES OF THE HONESTY LAW CHAMBERS APPEARED FOR THE APPELLANTS. COUNSELLORS STEPHEN J.C.S. KAI, LAWRENCE TOMAH AND JESSE B. KOBOI OF THE PUBLIC INTEREST LAW OFFICES, IN ASSOCIATION WITH R. JAWAH GRAY OF PRESTIGE LAW OFFICES, APPEARED FOR THE APPELLEE.